



NON-DISCLOSURE AGREEMENT (NDA)

SmartSkale having its principal place of business at Sector-4, Gr. Noida West, UP - 201318, India, represented by its Director (hereinafter "**Company**")

And

Employee Name Residing at Noida, Uttar Pradesh, India (hereinafter "**Intern**")

1. Purpose

The Receiving Party wishes to engage as an intern with the Company, wherein the Intern will have access to certain proprietary and confidential information of the Company. This NDA sets out the terms under which such information shall be shared and protected.

2. Definition of "Confidential Information"

"Confidential Information" means any and all non-public information disclosed by the Company to the Intern, including but not limited to:

- Business ideas, strategies, plans, and product roadmaps
- Product architecture, source code, algorithms, and technical documentation
- Client data, user data, contracts, and project details
- Financial information, pricing models, and revenue data
- Internal processes, workflows, and operational methods
- Marketing strategies, go-to-market plans, and partnership discussions
- Any information marked as 'Confidential' or reasonably understood to be confidential

3. Obligations of the Intern

The Intern agrees to:

- Keep all Confidential Information strictly confidential and not disclose it to any third party without prior written consent of the Company
- Use Confidential Information solely for the purpose of the internship at the Company
- Not copy, reproduce, reverse-engineer, or exploit Confidential Information for personal or commercial benefit
- Immediately notify the Company of any unauthorized disclosure or suspected breach
- Not publishing or sharing any Confidential Information on social media, forums, or any public platform

4. Ownership

Receiving Party recognizes that all tangible information relating to Confidential Information, including notes, reports and other documents prepared by Receiving Party in connection with the evaluation of the proposed internship, including all copies thereof, are and shall be the sole property of Disclosing Party, and Receiving Party shall keep the same at all times in its custody and subject to Receiving Party's control. The Receiving Party does not hereby and shall not acquire by implication or otherwise any right in or title to or license in respect of the Confidential Information disclosed to it by the Disclosing Party.

5. Exclusions

The obligations under this NDA shall not apply to information that:

- Is or becomes publicly available through no fault of the Intern
- Was already known to the Intern prior to disclosure by the Company
- Is independently developed by the Intern without use of Confidential Information
- It is required to be disclosed by applicable law or court order (with prior written notice to the Company)

6. Return of Confidential Information

Promptly following the earlier of (i) the termination of this Agreement or (ii) the written request of Disclosing Party, Receiving Party will deliver to Disclosing Party all documents or other materials furnished by Disclosing Party to Recipient constituting Confidential Information, together with all copies thereof, including computer disks in the possession of Receiving Party. In the event of such a request, all other documents or other materials constituting Confidential Information, together with all copies thereof in the possession of Receiving Party, will be destroyed with any such destruction confirmed by Receiving Party in writing to Disclosing Party.

7. Intellectual Property Protection

The Intern acknowledges that all Confidential Information and any product, code, design, or output created during the internship constitutes proprietary intellectual property of the Company. Nothing in this NDA grants the Intern any license, ownership, or rights over the Company's intellectual property.

8. Non-Solicitation

During the internship and for **12 (twelve) months** thereafter, the Intern shall not directly or indirectly:

- Solicit, recruit, or encourage any employee, contractor, or intern of the Company to leave the Company
- Approach or solicit any client or partner of the Company for competitive purposes

9. Term & Survival

This NDA shall be effective from the date of signing and shall remain in full force during the internship and for **2 (two) years** after its termination or expiry.

10. Remedies

The Intern acknowledges that any breach may cause irreparable harm to the Company. The Company shall be entitled to seek injunctive relief, specific performance, and any other equitable remedies available under applicable law, in addition to all other remedies.

11. Governing Law & Jurisdiction

This NDA shall be governed by the laws of India. All disputes shall be subject to the exclusive jurisdiction of courts in **Gautam Buddha Nagar (Greater Noida), Uttar Pradesh, India.**

12. Entire Agreement

This NDA constitutes the entire agreement between the Parties with respect to confidentiality and supersedes all prior understandings. Amendments must be in writing and signed by both Parties.



For SmartScale

Director SmartScale
2026-09-01

Intern / Candidate

Name: **Employee Name**
Date: _____

Address: SmartSkale, Sector-4, Gr. Noida West, UP - 201318 || **Website:** www.smartskale.tech

Email: support@smartskale.tech || **Phone:** 092666 03430, 092666 03433